PUNJAB VIDHAN SABHA

Bill No. 54-PLA-2016

THE C.T. UNIVERSITY BILL, 2016

A

BILL

to establish and incorporate a University in the State of Punjab to be known as the C.T. University for the purposes of making provisions for instruction, teaching, education, research, training and related activities at all levels in disciplines of higher education including professional, medical, technical, general education, language and literature and to provide for the matters connected therewith or incidental thereto;

Whereas the C.T. Educational Society, Jalandhar registered under the Societies Registration Act, 1860, (XXI of 1860), made a proposal to the State Government for setting up a self-financing University in the State of Punjab on the basis of the Punjab Private Universities Policy, 2010 and to make provisions for all the streams of higher education at all levels;

Whereas the State Government, after due consideration of the said proposal of the aforesaid Society, has come to the conclusion that the aforesaid Society is capable of establishing and running the University and acoordingly has accepted its proposal for the establishment of the said Private University;

And whereas in the circumstances referred to above, it is deemed expedient to establish the C.T. University, Ludhiana for the aforesaid purposes.

BE it enacted by the Legislature of the State of Punjab in the Sixty-seventh Year of the Republic of India as follows :—

Short title and commencement.

1. *(1)* This Act may be called the C.T. University Act, 2016.

(2) It shall come into force on and with effect from the date of its publication in the Official Gazette.

Definitions.

2. In this Act, unless the context otherwise requires,—

(a) 'Academic Council' means the Academic Council of the University;

(b) 'authorities' means the authorities of the University;

(c) 'Board of Management' means the Board of Management of the University;

Scanned with OKEN Scanner

(d) 'Board of Studies' means a body to be constituted by the Governing Body;

(e) 'campus' means a contiguous area within which the University is situated;

(f) 'Chairman' means the Chairman of the Society;

(g) 'Chancellor' means the Chancellor of the University;

(h) 'Chief Finance and Accounts Officer' means the Chief Finance and Accounts Officer of the University;

(i) 'Dean' means the Dean of the University;

(j) 'Governing Body' means the Governing Body of the University;

(k) 'institution' means an institution or institute or college or academic centre (by whatever name it may be called) run or managed by the University within the campus;

(l) 'prescribed' means prescribed by the statutes, ordinances and regulations;

(m) 'Registrar' means the Registrar of the University;

(n) 'Society' means the C.T. Educational Society, registered under the Societies Registration Act, 1860 (XXI of 1860);

(o) 'State Government' means the Government of the State of Punjab;

(p) 'statutes', 'ordinances' and 'regulations' means the statutes, ordinances and regulations of the University made by it under this Act;

(q) 'teacher' includes Professor, Reader, Associate Professor, Assistant Professor, Lecturer and any such other person who imparts instruction in the University;

(r) 'University' means the C.T. University established under section 3 of this Act;

(s) 'Vice-Chancellor' means the Vice-Chancellor of the University; and

(t) 'Visitor' means the Visitor of the University.

Scanned with OKEN Scanner

Establishment of the University

3. *(1)* There shall be established a private University by the name of the C.T. University in the State of Punjab.

(2) The University shall be run and managed by the Society in accordance with the provisions of this Act.

(3) The University shall be a body corporate by the name mentioned in sub-section *(1)* and shall have perpetual succession and a common seal. It shall have the power to acquire, hold, dispose of property both moveable and immoveable and to make contract and shall sue and be sued by the said name.

(4) The headquarter of the University shall be located at the C.T. Educational Society, Greater Kailash, G.T. Road Maqsudan, Jalandhar-144008.

(5) The University shall be self-financed and it shall not be entitled to receive any grant or other financial assistance from the State Government.

Objects of the University.

4. The objects of the University shall be—

(i) to provide for instruction, teaching, education, research and training at all levels in all disciplines of higher education including professional, medical, technical, general education and in any other stream and subject, as per the needs of the industry and the society in general, as may be deemed necessary by the University through all the modes of education as may emerge or become relevant in future;

(ii) to promote the academic aspirations of the rural students;

(iii) to undertake industry oriented teaching , training and research extension programmes and to provide employable skills with a view to contribute to the development of the society.

(iv) to provide for research, creation, advancement and dissemination of knowledge, wisdom and understanding;

(v) to encourage and motivate leading industrial houses for setting up their respective corporate institutes at the campus for academia industry nexus;

(vi) to disseminate knowledge so as to make it accessible to all strata of the society;

(vii) to promote the Punjabi studies to provide for research in Punjabi language and literature and to undertake measures for the development of Punjabi language, literature and culture; and

(viii) to do all such things as may be necessary or desirable to further the objects of the University.

Scanned with OKEN Scanner

Powers and functions of the University.

5. The University shall have the following powers and functions to be exercised and performed by it or through its officers and authorities, namely :—

(i) to make provisions and adopt all measures (including adoption and updating of the curricula) in respect of starting courses of study, teaching, training, research, consultancy and granting affiliation relating to the courses through traditional as well as new innovative modes including online education modes;

(ii) to conduct examinations for granting or conferring Doctorate, Masters, Degrees, Diplomas and Certificates;

(iii) to institute and confer the designation of Professor, Associate Professor, Assistant Professor, Reader, Lecturer or any other equivalent designation, as may be required by the University in its campus or its institutions and to appoint persons as such;

(iv) to institute and award fellowships, scholarships, studentships, exhibitions, as may be prescribed;

(v) to provide for equivalence of the degrees, diplomas and certificates of the students completing their courses, partially or in full, from any other recognized University, Board or Council or any other competent authority in India;

(vi) to provide for dual degree, diploma or certificate vis-a-vis other Universities on reciprocal basis;

(vii) to set up central library, departmental libraries, museums and allied matters within the campus;

(viii) to demand and collect fees and other charges, as may be prescribed;

(ix) to hold, manage and run the fund of the society and endowments created in favour of the University;

(x) to institute and confer honorary degrees, as may be prescribed;

(xi) to print and publish the works of the academic excellence and to establish chairs of excellence;

(xii) to take special measures for the spread of educational facilities amongst the educationally backward strata of society;

(xiii) to encourage and promote sports;

Scanned with OKEN Scanner

(xiv) to create technical, administrative, ministerial and other necessary posts and to make appointments thereto;

(xv) to receive grants from the University Grants Commission and other Central or State agencies;

(xvi) to receive and to raise loans and advances for the University;

(xvii) to undertake research projects on mutually acceptable terms and conditions in respect of agriculture, industry and business;

(xviii) to provide consultancy services;

(xix) to encourage and promote extra-curricular activities for personality development of the students, teachers and employees of the University;

(xx) to purchase, acquire and take on lease or mortgage, any immovable or movable property and to sell, lease, mortgage, alienate and transfer any immovable or movable property belonging to or vested in the University;

(xxi) to prescribe the fee structure for various categories of students;

(xxii) to seek collaboration with other institutions on mutually acceptable terms and conditions;

(xxiii) to fix, determine and provide salaries, remunerations and honoraria to teachers and employees of the University in accordance with the norms specified by the University Grants Commission;

(xxiv) to do self-certification, which shall be exempted from obtaining any permission, approval, license, certificate, no objection certificate or authorization from the State Government or any other body set-up by the State Government;

(xxv) to frame statutes, ordinances and regulations for carrying out the objects of the University; and

(xxvi) to perform all such other functions, which may be necessary or desirable in furtherance of the objects of the University.

Jurisdiction of the University.

6. *(1)* The University shall exercise its juridiction within its campus.

(2) The University shall affiliate it to those educational or professional institutions, established, run or managed by the Society within the campus with regard to which a specific decision is taken by the Society.

Scanned with OKEN Scanner

Officers of the University

7. The following shall be the officers of the University, namely :—

(i) the Visitor;

(ii) the Chancellor;

(iii) the Vice-Chancellor;

(iv) the Registrar;

(v) the Deans of the faculties;

(vi) the Chief Finance and Accounts Officer; and

(vii) such other officers of the University, as may be declared by the statutes, to be the officers of the University.

The Visitor.

8. *(1)* The Governor of Punjab shall be the Visitor of the University.

(2) The Visitor shall preside over the convocation of the University for conferring degrees and diplomas.

(3) The Visitor shall have the right to call for any information relating to the affairs of the University.

(4) The Visitor, in consultation with the Chancellor, may cause the inspection, scrutiny, investigation, survey or inquiry or any other such like thing to be made by such person, as he may direct in respect of administrative, academic or executive matters of the University.

(5) The Visitor shall, in every case, give notice to the University of his intention to cause the inspection, scrutiny, investigation, survey or inquiry or any other such like thing to be made and the University shall appoint a representative, who shall be present at such inspection, scrutiny, investigation, survey or inquiry or any other such like thing, as the case may be.

(6) The Visitor may inform the Vice-Chancellor about the results of such inspection, scrutiny, investigation, survey or inquiry and the Vice- Chancellor shall communicate to the Governing Body, the views of the Visitor along with such advice, as the Visitor may have tendered and the action to be taken on such advice.

(7) The Vice-Chancellor shall inform the Visitor about the action taken or proposed to be taken by the University with respect to the inspection scrutiny, investigation, survey, inquiry or any other such like thing, as the case may be.

Scanned with OKEN Scanner

(8) If the State Government considers it appropriate in public interest to make inspection, scrutiny, investigation, survey or inquiry, as the case may be, in respect of any matter relating to the University or its institutions, a reference shall be made by the State Government to the Visitor, who shall, in consultation with the Chancellor, cause such inspection, scrutiny, investigation, survey or inquiry to be made.

Chancellor.

9. *(1)* The Chairman shall be the Chancellor of the University and the Chancellor, in the absence of the Visitor, shall preside over the convocation of the University.

(2) The Chancellor shall be the Chairman of the Governing Body and he shall approve all appointments, nominations, removals, suspensions and reinstatements of the employees and officers of the University either *suo-moto* or on the recommendation of the authority concerned of the University.

(3) The Chancellor may amend or revoke any decision taken by any authority or officer of the University and may exercise his powers either *suo-moto* or otherwise to do all things to facilitate the smooth functioning of the University.

(4) The Chancellor shall have the power to do all such other functions as may be required to further the objects of the University and any matter incidental thereto and the decision taken by the Chancellor shall be final and binding on all the concerned of the University.

(5) If, in the opinion of the Chancellor, any decision of any officer or authority of the University is beyond the power conferred under this Act or the statutes or ordinances or regulations or is likely to be prejudicial to the interests of the University, he shall ask such officer or authority to revise its decision within a period of fifteen days and in case, the officer or authority refuses to revise such decision, wholly or partly, or fails to take any decision within a period of fifteen days, the decision of the Chancellor shall be final.

(6) If, at any time, upon the representation made or otherwise, it appears to the Chancellor that the Vice-Chancellor or any other officer of the University—

(a) has made default in performing any duty imposed upon him under this Act or otherwise; or

(b) has acted in a manner prejudicial to the interests of the University; or

Scanned with OKEN Scanner

(c) is incapable of managing the affairs of the University,

the Chancellor may, notwithstanding the fact that term of that officer has not expired, by an order in writing and stating the reasons therein, require the Vice-Chancellor or the officer concerned to relinquish his office from such date, as may be specified in the order. The Vice-Chancellor or the officer concerned shall be deemed to have relinquished his office from the date so specified :

Provided that no such order shall be passed, unless the grounds on which such action is proposed to be taken are communicated to the Vice-Chancellor or the officer concerned and he is given reasonable opportunity of being heard.

The Vice-Chancellor

10. *(1)* The Vice-Chancellor shall be appointed by the Chancellor from amongst the panel of three persons recommended by the Governing Body.

(2) No person shall be appointed as Vice-Chancellor, unless he possesses such qualifications as are specified by the University Grants Commission.

(3) The Vice-Chancellor shall be the overall in-charge of the University, who shall exercise general superintendence and control in the affairs of the University and shall execute the decisions of various authorities of the University.

(4) In case of the absence of the Visitor and the Chancellor, the Vice-Chancellor shall preside over convocation of the University.

(5) The Vice-Chancellor shall exercise such powers and perform such functions, as may be prescribed.

The Registrar.

11. *(1)* The Registrar shall be appointed by the Chancellor from amongst the panel of three persons recommended by the Governing Body.

(2) No person shall be appointed as Registrar, unless he possesses such qualifications as are specified by the University Grants Commission.

(3) The Registrar shall sign all contracts and authenticate all documents or records for and on behalf of the University.

(4) The Registrar shall be the Member-Secretary of the Governing Body, the Board of Management and the Academic Council but he shall not have the right to vote.

(5) The Registrar shall exercise such other powers and perform such other functions, as may be prescribed.

Scanned with OKEN Scanner

12. *(1)* The Chief Finance and Accounts Officer shall be appointed by the Chancellor in such manner, as may be prescribed. The Chief Finance and Accounts Officer.

(2) No person shall be qualified to be appointed as Chief Finance and Accounts Officer, unless he has passed the Chartered Accountancy Test conducted by the Institute of Chartered Accountants of India.

(3) The Chief Finance and Accounts Officer shall exercise such powers and perform such functions, as may be prescribed.

13. *(1)* The University may appoint such other officers, as it may deem necessary for its smooth functioning. Other officers.

(2) The manner of appointment of such other officers of the University and their powers and functions shall be such, as may be prescribed.

14. The following shall be the authorities of the University, namely :— Authorities of the University.

(i) the Governing Body;

(ii) the Board of Management;

(iii) the Academic Council; and

(iv) such other authorities, as may be declared by the statutes to be the authorities of the University.

15. *(1)* The Governing Body of the University shall consist of the following persons, namely :— The Governing Body.

(a)	The Chancellor;	.. Chairman
(b)	the Vice-Chancellor;	.. Member
(c)	three persons nominated by the Society, out of whom two shall be eminent educationists;	.. Member
(d)	one expert of management or information technology;	.. Member
(e)	one expert of Finance, nominated by the Chancellor;	.. Member
(f)	the Secretary to Government of Punjab, Department of Higher Education or his representative, not below the rank of Joint Secretary; and	.. Member

Scanned with OKEN Scanner

(g) one eminent educationist nominated by the Secretary to Government of Punjab, Department of Higher Education in consultation with the Chancellor. .. Member

(2) The Governing Body shall be the supreme body of the University. It shall perform the following functions, namely :—

(a) to provide general superintendence and to give directions for controlling the functioning of the University in accordance with the satutes, ordinances and regulations;

(b) to review the decisions of other authorities of the University in case these are not in conformity with the provisions of the statutes, ordinances and regulations;

(c) to approve the budget and annual report of the University;

(d) to lay down the extensive policies to be followed by the University ; and

(e) to exercise such other powers, as may be prescribed by the statutes.

(3) The Governing Body shall meet at least twice in a calendar year.

(4) The quorum for meeting of the Governing Body shall be five.

The Board of Management.

16. (1) The Board of Management shall consist of the following members, namely :—

(a) the Chancellor or his nominee ; .. Chairperson

(b) the Vice-Chancellor ; .. Member

(c) two members of the Society nominated by the Society ; .. Member

(d) the Director of the Directorate concerned relating to education as representative of the State Government ; .. Member

(e) three persons, who are not the members of the Society, nominated by the Society ; .. Member

Scanned with OKEN Scanner

(f) two persons from amongst the teachers nominated by the Society ; and .. Member

(g) two teachers, nominated by the Chancellor. .. Member

(2) The Board of Management shall exercise such powers and perform such functions, as may be prescribed.

(3) The Board of Management shall meet at least twice in a calendar year.

(4) The quorum for meeting of the Board of Management shall be five.

The Academic Council.

17. (1) The Academic Council shall consist of the following members, namely :—

(a) the Vice-Chancellor ; .. Chairperson

(b) one eminent academician nominated by the State Government as its representative ; and .. Member

(c) such other persons, as may be prescribed. .. Member

(2) The Academic Council shall be the main academic body of the University and it shall, subject to the provisions of this Act, statutes, ordinances and regulations, co-ordinate and exercise general supervision over the academic policies of the University.

(3) The quorum for meeting of the Academic Council shall be such, as may be prescribed.

The Finance Committee.

18. (1) The Finance Committee shall consist of the following members, namely :—

(i) the Vice-Chancellor ; .. Chairman

(ii) the Dean, Academic Affairs ; .. Member

(iii) the Registrar ; .. Member

(iv) two persons nominated by the Society out of whom one shall be a financial expert ; and .. Member

(v) the Chief Finance and Accounts Officer. .. Member-Secretary

Scanned with OKEN Scanner

(2) The members nominated by the Society shall hold office for a period of two years.

Functions of the Finance Committee.

19. (1) The Chief Accounts and Finance Officer shall get the annual budget of the University prepared along with the requisite documents and submit the same to the Finance Committee for its approval. The Chief Accounts and Finance Officer shall also get the accounts of the annual income and expenditure of the University prepared and get the same audited from the Chartered Accountant, so appointed by the Finance Committee in this regard.

(2) The budget approved by the Finance Committee, alongwith the note with regard to the audit of income and expenditure of the University, referred to in sub-section (1), shall be placed before the Chancellor for approval.

(3) The Finance Committee shall tender advice to the Chancellor on financial matters of the University.

Other authorities.

20. The composition, constitution, powers and functions of authorities under clause (iv) of section 14, shall be such, as may be prescribed.

Disqualification for membership of an authority or body.

21. A person shall be disqualified for being a member of any of the authorities or body of the University, if he—

(i) is of unsound mind and stands so declared by a competent court ; or

(ii) is an un-discharged insolvent ; or

(iii) has been convicted of any offence involving moral turpitude ; or

(iv) has been punished for indulging in or promoting unfair practice in the conduct of any examination in any form.

Acts or proceedings not to be invalidated due to vacancies.

22. No act done or proceedings taken under this Act by an authority or body of the University shall be invalid merely on the ground of—

(a) any vacancy or defect in the constitution of the authority or body ; or

(b) any defect or irregularity in nomination or appointment of person acting as member thereof ; or

(c) any defect or irregularity in such act or proceeding not affecting the merits of the case.

Scanned with OKEN Scanner

23. If any vacancy occurs in any authority or body of the University due to death, resignation or removal of member or due to change of capacity in which he was appointed or nominated, the same shall be filled up, as early as possible, by the authority or body which had appointed or nominated such a member : Filling up of emergent vacancies.

Provided that the person so appointed or nominated as a member of any authority or body of the University in an emergent vacancy shall remain member of such authority or body only for the remaining tenure of the member, in whose place he is appointed or nominated, as the case may be.

24. The authorities or officers of the University may constitute such committees, as may be necessary for performing specific tasks by such committees. The constitution of such committees and their duties shall be such, as may be prescribed. Committees.

25. Notwithstanding anything contained in this Act, the Society shall run a special school for imparting education to minimum fifty students in 11th class and 12th class, free of cost, which shall also include the facility of free accommodation and free diet. Admission of the students shall be made on the basis of merit. Running special school for imparting free education to students.

26. *(1)* The Governing Body may, from time to time, make statutes or may amend or repeal the same. Power to make statutes.

(2) The statute or any amendment made therein or repeal thereof shall require the approval of the Chancellor.

(3) Subject to the provisions of this Act, the statutes may provide for the following matters, namely :—

(i) the constitution, powers and functions of the authorities and other bodies of the University, as may be constituted from time to time;

(ii) the terms and conditions of appointment of the Vice-Chancellor and his powers and functions ;

(iii) the manner, terms and conditions of appointment of the Registrar and Chief Finance and Accounts Officer and their powers and functions ;

(iv) the manner, terms and conditions of appointment of other officers and teachers and their powers and functions ;

Scanned with OKEN Scanner

(v) the terms and conditions of service of the employees of the University ;

(vi) the procedure for arbitration in case of dispute between University, officers, teachers, employees and students ;

(vii) the conferment of honorary degrees ;

(viii) the exemption of students from payment of tuition fee and for awarding them scholarships and fellowships ;

(ix) the policy of admissions, including regulation of reservation of seats ;

(x) the number of seats in different courses ; and

(xi) any other matter for which statutes are required to be made under this Act.

(4) After the approval of the Chancellor, the statutes of the University shall be submitted to the State Government for its approval.

(5) The State Government shall consider the statutes submitted by the University and shall give its approval without or with such modifications, if any, as it may deem necessary and return the statutes to the University.

(6) The University shall, with the approval of the Governing Body, communicate its concurrence to the statutes as approved by the State Government, and if it desires not to give effect to any or all of the modifications made by the State Government, it may give reasons thereof.

(7) After the statutes are finally approved by the State Government, these shall be published in the Official Gazette of the University.

(8) The statutes so made, shall not be amended without the approval of the State Government.

Power to make ordinances.

27. (1) The Governing Body may, from time to time, make ordinances or may amend or repeal the same.

(2) Every ordinance or any amendment made therein or repeal thereof, shall require the approval of the Chancellor.

(3) Subject to the provisions of this Act, the ordinances may provide for the following matters, namely :—

(i) the admission of students to the University and their enrolment as such ;

Scanned with OKEN Scanner

(ii) the courses of study to be laid down for the degrees, diplomas and certificates of the University ;

(iii) the degrees, diplomas, certificates and other academic distinctions ;

(iv) the fees to be charged for various courses, examinations, degrees and diplomas of the University ;

(v) the conditions for the award of fellowships, Scholarships, studentships, medals and prizes ;

(vi) the conduct of examinations, including the terms of office, manner of appointment and the duties of the examining bodies, examiners and moderators ;

(vii) the conditions of hostel facilities for students in the University ;

(viii) taking disciplinary action against the students of the University ;

(ix) the creation, composition and functions of any other body, which is considered necessary for improving the academic standard of the University ;

(x) the manner of co-operation and collaboration with Universities and institutions ; and

(xi) any other matter which by this Act or the statutes made thereunder are required to be provided by the ordinances.

(4) After the approval of the Chancellor, the ordinances of the University shall be submitted to the State Government for its approval.

(5) The State Government shall consider the ordinances submitted by the University and shall give its approval without or with such modifications, if any, as it may deem necessary and return the same to the University.

(6) The University shall, with the approval of the Governing Body, communicate its concurrence to the ordinances as approved by the State Government and if it desires not to give effect to any or all of the modifications made by the State Government, it may give reasons thereof.

(7) After the ordinances are finally approved by the State Government, these shall be published in the Official Gazette of the University.

(8) The ordinances so made, shall not be amended without the approval of the State Government.

Scanned with OKEN Scanner

Power to make regulations.

28. *(1)* The Governing Body may, from time to time, make regulations or may amend or repeal the same.

(2) Every regulation or any amendment made therein or repeal thereof, shall require the approval of the Chancellor.

(3) After the approval of the Chancellor, the regulations of the University shall be submitted to the State Government for its approval.

(4) The State Government shall consider the regulations submitted by the University and shall give its approval without or with such modifications, if any, as it may deem necessary and forward the same to the University.

(5) The University shall, with the approval of the Governing Body, communicate its concurrence to the regulations as approved by the State Government and if it desires not to give effect to any or all of the modifications made by the State Government, it may give reasons thereof.

(6) After the regulations are finally approved by the State Government, these shall be published in the Official Gazette of the University.

(7) The regulations so made, shall not be amended without the approval of the State Government.

University to follow rules, regulations etc. of the regulating bodies.

29. *(1)* The University shall be prohibited from conferring any degrees, not recognized by the University Grants Commission or its equivalent body constituted by the Central Government.

(2) It shall be mandatory for the University to follow the University Grants Commission (Establishment and Maintenance of Standards in Private Universities) Regulations, 2003, or any other regulations made for private Universities by the University Grants Commission or other regulatory bodies.

General Fund.

30. *(1)* The University shall have General Fund to which shall be credited—

(a) fees and other charges received by the University;

(b) any income received from consultancy and other work undertaken by the University; and

(c) funds and grants received from any source by the University for research projects from any Government and Non-Governmental funding agencies.

Scanned with OKEN Scanner

(2) The General Fund shall be utilized for the following purposes, namely :—

(a) for the repayment of the debts including interest charges thereto incurred by the University;

(b) for the upkeep of the assets of the University;

(c) for the payment of the cost of audit of the fund;

(d) for meeting the expenses of any suit or proceedings;

(e) for the payment of salaries and allowances to the officers and employees of the University and for the payment of any benefits to any such officer and employee;

(f) for the payment of travelling and other allowances to the members of the authorities, committee or Board of the University;

(g) for the payment of fellowships, scholarships, assistantships and other awards to students belonging to economically weaker sections of the society or research associates or trainees, as the case may be, or to any student eligible for such awards;

(h) for the payment of any expenses incurred by the University;

(i) for acquisition of land or any kind of development work or likewise activities for the purpose of the University;

(j) for the payment of cost of capital and repayment of loans incurred by the Society for setting up and running the University and the investments made therefor;

(k) for the payment of charges and expenditure relating to the consultancy work undertaken by the University; and

(l) for the payment of any expenditure, salaries, taxes, liabilities by the Society for or on behalf of the University.

Annual report.

31. The accounts of the income and expenditure of the University shall be audited by the Chartered Accountant of the University and the same shall be submitted once in a year by the Chief Finance and Accounts Officer to the Governing Body for its approval.

Scanned with OKEN Scanner

Examination.

32. The University shall prepare and publish a semester-wise or annual, as the case may be, tentative schedule of Examinations including academic activities to be conducted by the University in the beginning of each academic session, but not later than the 30th day of August in a calendar year.

Explanation.—'Schedule of Examinations' means the time table giving details about the time, day and date of the commencement of each paper which is part of the scheme of examinations including the details of practical examinations and *viva-voce*, if any.

Declaration of results.

33. *(1)* The University shall strive to declare the results of examinations conducted by it within a period of forty five days from the last date of the examination of particular course but, in any case, not later than sixty days from the said date.

(2) No examination or the result of an examination shall be held invalid only for the reason that the University has not followed the schedule of Examinations.

Convocation.

34. The convocation of the University shall be held in every academic year for conferring degrees, diplomas, certificates or any other academic distinction or for any other purpose in the manner, as may be prescribed.

Disputes concerning authorities and bodies.

35. If any dispute arises with respect to the appointment or entitlement of any person, to be a member of any authority or other body of the University, the same shall be referred to the Chancellor, whose decision thereon shall be final and binding.

Power to remove difficulties.

36. If any difficulty arises in giving effect to any of the provisions of this Act, the State Government may, in consultation with the Chancellor, by an order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as it may deem necessary for removing such difficulty :

Provided that no such order shall be made under this section after the expiry of a period of two years from the date of commencement of this Act.

Protection of action taken in good faith.

37. No suit or other legal proceeding shall lie against any officer or employee of the University for anything which is done in good faith or intended to be done in pursuance of the provisions of this Act or the statutes, ordinances or regulations.

Scanned with OKEN Scanner

Transitory provisions.

38. Notwithstanding anything contained in this Act and the statutes, ordinances or regulations made thereunder, the Society may, subject to the availability of the funds, discharge all or any of the functions of the University for the purposes of carrying out the provisions of this Act or the statutes, ordinances and regulations and for that purpose, may exercise such powers and perform such duties, which by this Act or by such statutes, ordinances and regulations, are to be exercised or performed by any authority or officer of the University, until such authority comes into existence or officer is appointed.

Scanned with OKEN Scanner

STATEMENT OF OBJECTS AND REASONS

As the Punjab Private Universities Policy—2010 has been formulated to provide greater access and to ensure quality in higher education, the Government of Punjab wishes to allow the establishment of self financed Private Universities to supplement the efforts of the State Universities. The object of CT University is to impart comprehensive education at all levels to achieve excellence and to promote research and teaching in areas of Education, Engineering and Technology, Languages, Laws, Life Sciences and other courses under the general heads of the Arts and Humanities, Social Sciences.

2. As the establishment of such private self financed Universities requires a broad uniform set of guidelines for ensuring academic standards, prevention of commercialization and mismanagement etc., it deemed, therefore, expedient to provide for promulgation of 'The CT University Bill—2016'.

SURJIT SINGH RAKHRA,
Minister of Higher Education,
Punjab.

Scanned with OKEN Scanner

MEMORANDUM REGARDING DELEGATED LEGISLATION

Section 26, 27 and 28 of the CT University, Bill—2016 powers various authorities of the said CT University to make statutes, ordinances and regulations respectively for carrying out the purposes of the Act. The powers sought are necessary for the proper implementation of the provisions of the Act.

CHANDIGARH :
The 19th December, 2016

SHASHI LAKHANPAL MISHRA,
Secretary.

N.B.—The above Bill was published in the *Punjab Government Gazette (Extraordinary)*, dated the 19th December, 2016 under the proviso to rule 121 of the Rules of Procedure and Conduct of Business in the Punjab Vidhan Sabha (Punjab Legislative Assembly).

Scanned with OKEN Scanner